# Elections & Electoral Finance

*How the Legat Consul is elected: two tests at once, a 60% waiver, a runoff with no second test, and — when arithmetic runs out — a lot drawn in public. Then the money rules, which begin by removing campaign cash from protected speech entirely.*

§7.1 – §7.3 · §8.1 – §8.4
8 provisions

## THE DUAL TEST — §7.1

### Test 1 — National RCV Majority

A **majority of votes cast nationally**, under Ranked Choice Voting. Every citizen's vote counts here — **Territory citizens included**.

BOTH

### Test 2 — State Plurality

More first-preference votes than any other candidate in a **majority of the Republic's States**. Breadth, not just depth — a candidate must win rooms across the country, not one region overwhelmingly. Territories are not counted here.

**60%** **The waiver:** a national RCV majority at or above 60% of votes cast waives the State plurality test — consent that overwhelming is already broad. The same 60% governs the direct electoral supermajorities specified in §7.3 (§7.3): SC public confirmation under §4.4.a, and public-election removal of a constitutional officer. Statute cannot move it in either direction.

## WHEN NO ONE WINS OUTRIGHT — §7.1

STEP 1
**Two Advance**
No candidate meets both tests and none reaches 60%. Two advance: the national RCV winner and the other candidate with pluralities in the most States.

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STEP 2
**Runoff — One Test Only**
The national RCV winner against the candidate who led the most States, decided by national majority. Each led on one measure; the runoff settles which wins.

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IF TIED
**Public Lot**
Resolved by lot under Elections Panel supervision. The edge case is pre-answered, not improvised.

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CERTIFICATION
**Final, SC Review Only**
Final upon certification, subject only to timely SC review for material errors in certification, sought under procedures set by statute. This applies to every federal election and direct citizen vote (§7.2(7)).

## THE MONEY AND THE CONDUCT — §8.1, §8.2, §8.3, §8.4

### Electoral Finance §8.1

`Disclose everything to the Panel` · `Individual cap by statute` · `Corporate / foreign: prohibited`

Anonymity in electoral finance is prohibited. Every contribution is disclosed in full to the Elections Panel — no threshold, no exception — and published to the NRS, which may present the smallest contributions in aggregate to protect donor privacy. Coordinated expenditures are treated as direct contributions. And the foundation under all of it: **campaign money is explicitly not protected speech under §1.5** — the regulation is reserved from both speech and associational protection, so the whole framework can't be dissolved by one court case.

### Conduct, Airwaves & Financing §8.2 · §8.3 · §8.4

`Foreign help = disqualified` · `Impartial, reasonable-rate access` · `Public financing available`

Knowingly accepting prohibited foreign assistance disqualifies a candidate from that cycle, by Elections Panel determination before certification, after notice, with appeal. Officeholders may not use public resources, staff, or authority for any campaign, including their own reelection. Operators using public resources such as broadcast spectrum must offer qualified candidates **impartial access at reasonable rates**, so no candidate is priced out — the airwaves belong to the public that licenses them. And the Legislature must establish a **public campaign financing system** available to all qualified candidates on equal terms, providing a genuine alternative to private fundraising.

## THE CALENDAR NO ONE CAN TOUCH — §7.2, §7.2.A

**2·6·4** years — Assembly / Senate (staggered) / Consular cycles. All federal elections use **RCV**, run on the National Voting System.

**0** power either Consul has over election timing — **cannot postpone or interfere with federal elections**; postponement belongs only to the Legislature (§7.2, §7.2.a).

**90** days — the most any single postponement can last, and only after Elections Panel certification of impossibility plus **2/3 of each chamber**. Each further postponement needs both again; elections proceed as soon as practicable.

**§7.3** one threshold, one home — **60% of votes cast** for direct citizen-vote supermajorities **except amendment referendums under §17.1**. Participation floors remain separate; statute cannot change the threshold.



*A theoretical constitutional design project — not the law of any existing nation.*